

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC052993: BYRON GUILLERMO RODRIGUEZ vs GENERAL MOTORS, LLC.
07/28/2026 in Department 44
Demurrer & Motion to Strike

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion:

Defendant General Motors LLC’s Demurrer to and Motion to Strike portions of Plaintiff’s Complaint

Tentative Ruling:

Defendant has WITHDRAWN its demurrer to Plaintiff’s fifth cause of action for fraudulent inducement, and so the Court declines to rule on it.

The Court SUSTAINS with leave to amend, the demurrer to the fourth cause of action for breach of the implied warranty. The Complaint alleges equitable tolling, equitable estoppel, repair-related tolling, and class-action tolling, however, these allegations are largely conclusory and do not identify the dates, duration, or circumstances of repair efforts or other facts sufficient to establish that the limitations period was tolled through October 28, 2025. Plaintiff may be able allege specific facts to establish tolling sufficient to render the claim timely, so leave to amend is appropriate.

Defendant's Motion to Strike is GRANTED in part, with leave to amend. A consumer who proceeds without providing 30 days notice prior to filing suit may seek restitution or replacement but may not seek civil penalties under § 1794(c). (CCP § 871.24(h).) The Complaint does not allege that Plaintiff did provide timely notice, and so the Complaint does not support a prayer for civil penalties.

1. Paragraphs 29, 36, and 39, to the extent they seek civil penalties under Civil Code § 1794(c);
2. Paragraph 31, to the extent it seeks civil penalties under § 1794(c); and
3. Prayer paragraph (e), to the extent it seeks civil penalties under § 1794(c).

The Motion to Strike is DENIED as to paragraph 30 and the portions of paragraph 31 and prayer paragraph (e) seeking civil penalties under Civil Code § 1794(e).

Plaintiff shall file an amended pleading within 20 days.

Defendant shall give notice.